Electronic Signature Policy

Effective Date:
October 05, 2026

Category:
Security

Scheduled Review:
October 2027

1. Authority

Executive Order 2016-06, Enterprise Information Technology Governance

2. Document Control

This document replaces, in its entirety, the *Electronic Signature Policy*, dated August 27, 2025.

3. Purpose

This Information Technology Policy (ITP) establishes an enterprise-wide approach for the use of electronic signatures in accordance with *the Uniform Electronic Transactions Act (UETA)* which was adopted by the Commonwealth of Pennsylvania in Chapters 1, 3 and 5 of the *Electronic Transaction Act, Act 69 of 1999, 73 Pa.C.S. §§ 2260.101 – 2260.503.*

4. Scope

This policy applies to all offices, departments, boards, commissions, and councils under the Governor's jurisdiction and any other entity connecting to the Commonwealth Network (hereinafter referred to as "agencies").

5. Policy

For definitions found within this document refer to the *IT Policy Glossary*.

When implementing electronic signatures, Agencies shall implement and use electronic signatures in accordance with the *Uniform Electronic Transactions Act (UETA*), other applicable laws and regulations, and this policy.

Electronic signatures that satisfy applicable legal and policy requirements shall be recognized as having the same legal effect as handwritten signatures where permitted by law. Agencies shall ensure electronically signed records, including associated electronic signature information, are retained in accordance with *Management Directive 210.5, The Commonwealth of Pennsylvania State Records Management Program* and any other applicable records retention requirements.

An electronic signature may not be valid if the electronically authenticated record is rendered incapable of

retention, i.e. cannot be printed or stored.

Agencies shall determine the appropriate assurance requirements for transactions involving electronic signatures. Refer to *Transaction Security and Assurance Levels for Electronic Signatures Procedure* for guidance.

This ITP does not prescribe or restrict the use of specific electronic signature technologies, tools, or products. Agencies may implement electronic signature solutions that meet the requirements of this policy and applicable Commonwealth standards. Agencies should refer to the *Electronic Signatures Guideline* for additional implementation guidance.

In general, electronic signatures, regardless of technology, shall ensure:

- Integrity of electronically signed records.
- Attribution of the electronic signature to the intended signatory.
- Evidence of the signatory's intent to sign.
- Verification of the electronic signature for the required records retention period.

Agencies implementing electronic signature solutions shall document the following:

- The business processes and systems in which electronic signatures are used.
- The type(s) of electronic signatures authorized for use.
- Any agency-specific controls necessary to protect the integrity, confidentiality, availability, retention, and auditability of electronically signed records.

If an agency is subject to state or federal regulations pertaining to electronic signatures, nothing in this ITP or its supporting documents shall be interpreted in a way as to prevent an agency from implementing more stringent policies, procedures, and/or controls to comply with such regulations.

5.1 Compliance Criteria

For electronic signatures to comply with state laws and statutes, the following criteria must be met to verify an electronic signature:

Password-based signatures shall be used in conjunction with at least one of the following technologies listed below and be unique to the individual signing regardless of the technology utilized:

- Public or private key or asymmetric cryptography
- Digitized signatures
- Electronic seals
- Personal Identification Number (PIN)
- Click-wrap or click-through

Implemented electronic signature solutions must include security controls consistent with applicable Commonwealth security policies and standards to protect electronic signatures and the

integrity of electronically signed records.

The signature must establish the individual's intent to be bound to the transaction. An individual must be fully aware of the purpose for which the signature is being provided, regardless of underlying technology. Below are a few ways in which this intent can be captured:

- Require the individual to review the document or content which requires a signature.
- Require formal acknowledgement by individual of electronic signature prior to application.
- Format documents requiring electronic signature in a manner that reflects a paper record, so the significance of the signature is apparent to individual signing.
- Provide a certification statement that is linked to signed record.
- Alternatively, allowing signer to click "I Accept" "I Agree" or "Reject" to indicate a choice was made.
- Formally record the date and time stamp of and with the electronic signature (as this may be different than the time the application was accessed or authenticated).

6 Contact

Questions or comments may be directed via email to OA, IT Policy.

7 Exception from Policy

In the event an agency chooses to seek an exception from this policy, a request for a policy exception shall be submitted via the enterprise IT policy exception process. Refer to *IT Policy Governance Policy* for guidance.

8 Revision History

This chart contains a history of this publication's revisions. Redline documents outline the revisions and are available to Commonwealth users only during the drafting process.

Version	Date	Purpose of Revision
Original	01/06/2025	Base Document
Revision	08/27/2025	Added document control section Minor clarifications and grammatical updates
Revision	10/05/2026	Removed the table containing technology descriptions and use cases Other misc. clarifications and grammatical updates